



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*

*Majority Research Staff*

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**HB 2136: civil terrorism; disorderly conduct; subversion**

## **WAY FLOOR AMENDMENT**

1. Defines *intent to coerce or intimidate a civilian population* and *intent to subvert the government*.
2. Outlines what acts and evidence may be used to establish when subversion is occurring.
3. Asserts that advocacy, protest, dissent or political opposition without intent to use unlawful force does not constitute subversion.

WAY FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2136  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-2301, Arizona Revised Statutes, is amended to  
3 read:

4 13-2301. Definitions

5 A. For the purposes of sections 13-2302, 13-2303 and 13-2304:

6 1. "Collect an extension of credit" means to induce in any way any  
7 person to make repayment of that extension.

8 2. "Creditor" means any person making an extension of credit or any  
9 person claiming by, under or through any person making an extension of  
10 credit.

11 3. "Debtor" means any person to whom an extension of credit is made  
12 or any person who guarantees the repayment of an extension of credit, or  
13 in any manner undertakes to indemnify the creditor against loss resulting  
14 from the failure of any person to whom an extension is made to repay the  
15 extension.

16 4. "Extend credit" means to make or renew any loan or to enter into  
17 any agreement, tacit or express, whereby the repayment or satisfaction of  
18 any debt or claim, whether acknowledged or disputed, valid or invalid, and  
19 however arising, may or shall be deferred.

20 5. "Extortionate extension of credit" means any extension of credit  
21 with respect to which it is the understanding of the creditor and the  
22 debtor when the extension is made that delay in making repayment or  
23 failure to make repayment could result in the use of violence or other  
24 criminal means to cause harm to the person or the reputation or property  
25 of any person.

26 6. "Extortionate means" means the use, or an express or implicit  
27 threat of use, of violence or other criminal means to cause harm to the  
28 person or the reputation or property of any person.

1       7. "Repayment of any extension of credit" means the repayment,  
2 satisfaction or discharge in whole or in part of any debt or claim,  
3 acknowledged or disputed, valid or invalid, resulting from or in  
4 connection with that extension of credit.

5       B. For the purposes of section 13-2305, 13-2306 or 13-2307:

6       1. "Dealer in property" means a person who buys and sells property  
7 as a business.

8       2. "Stolen property" means property of another as defined in  
9 section 13-1801 that has been the subject of any unlawful taking.

10       3. "Traffic" means to sell, transfer, distribute, dispense or  
11 otherwise dispose of stolen property to another person, or to buy,  
12 receive, possess or obtain control of stolen property, with the intent to  
13 sell, transfer, distribute, dispense or otherwise dispose of the property  
14 to another person.

15       C. For the purposes of this chapter:

16       1. "Animal activity" means a commercial enterprise that uses  
17 animals for food, clothing or fiber production, agriculture or  
18 biotechnology.

19       2. "Animal facility" means a building or premises where a  
20 commercial activity in which the use of animals is essential takes place,  
21 including a zoo, rodeo, circus, amusement park, hunting preserve and horse  
22 and dog event.

23       3. "Animal or ecological terrorism" means any felony in violation  
24 of section 13-2312, subsection B that involves at least three persons  
25 acting in concert, that involves the intentional or knowing infliction of  
26 property damage in an amount of more than \$10,000 to the property that is  
27 used by a person for the operation of a lawfully conducted animal activity  
28 or to a commercial enterprise that is engaged in a lawfully operated  
29 animal facility or research facility and that involves either:

30       (a) The use of a deadly weapon or dangerous instrument.

31       (b) The intentional or knowing infliction of serious physical  
32 injury on a person engaged in a lawfully conducted animal activity or  
33 participating in a lawfully conducted animal facility or research  
34 facility.

35       4. "Biological agent" means any microorganism, virus, infectious  
36 substance or biological product that may be engineered through  
37 biotechnology or any naturally occurring or bioengineered component of any  
38 microorganism, virus, infectious substance or biological product and that  
39 is capable of causing any of the following:

40       (a) Death, disease or physical injury in a human, animal, plant or  
41 other living organism.

42       (b) The deterioration or contamination of air, food, water,  
43 equipment, supplies or material of any kind.

44       5. "Combination" means persons who collaborate in carrying on or  
45 furthering the activities or purposes of a criminal syndicate even though  
46 such persons may not know each other's identity, membership in the  
47 combination changes from time to time or one or more members may stand in

1 a wholesaler-retailer or other arm's length relationship with others as to  
2 activities or dealings between or among themselves in an illicit  
3 operation.

4 6. "Communication service provider" has the same meaning prescribed  
5 in section 13-3001.

6 7. "Criminal syndicate" means any combination of persons or  
7 enterprises engaging, or having the purpose of engaging, on a continuing  
8 basis in conduct that violates any one or more provisions of any felony  
9 statute of this state.

10 8. "Explosive agent" means an explosive as defined in section  
11 13-3101 and flammable fuels or fire accelerants in amounts over fifty  
12 gallons but excludes:

13 (a) Fireworks as defined in section 36-1601.

14 (b) Firearms.

15 (c) A propellant actuated device or propellant actuated industrial  
16 tool.

17 (d) A device that is commercially manufactured primarily for the  
18 purpose of illumination.

19 (e) A rocket having a propellant charge of less than four ounces.

20 9. "Material support or resources" includes money or other  
21 financial securities, financial services, lodging, sustenance, training,  
22 safehouses, false documentation or identification, communications  
23 equipment, facilities, weapons, lethal substances, explosives, personnel,  
24 transportation, disguises and other physical assets but does not include  
25 medical assistance, legal assistance or religious materials.

26 10. "Public establishment" means a structure, vehicle or craft that  
27 is owned, leased or operated by any of the following:

28 (a) This state or a political subdivision as defined in section  
29 38-502.

30 (b) A public agency as defined in section 38-502.

31 (c) The federal government.

32 (d) A health care institution as defined in section 36-401.

33 (e) A private educational institution.

34 11. "Research facility" means a laboratory, institution, medical  
35 care facility, government facility, public or private educational  
36 institution or nature preserve at which a scientific test, experiment or  
37 investigation involving the use of animals is lawfully carried out,  
38 conducted or attempted.

39 12. "Terrorism":

40 (a) Means any felony, including any completed or preparatory  
41 offense, that involves the use of a deadly weapon or a weapon of mass  
42 destruction or the intentional or knowing infliction of serious physical  
43 injury with the intent to do any of the following:

44 ~~(a)~~ (i) Influence the policy or affect the conduct of this state  
45 or any of the political subdivisions, agencies or instrumentalities of  
46 this state.

1       ~~(b)~~ (ii) Cause substantial damage to or substantial interruption  
2 of public communications, communication service providers, public  
3 transportation, common carriers, public utilities, public establishments  
4 or other public services.

5       ~~(c)~~ (iii) Intimidate or coerce a civilian population.

6       ~~(d)~~ (vi) Further the goals, desires, aims, public pronouncements,  
7 manifestos or political objectives of any terrorist organization.

8       (b) DOES NOT INCLUDE CIVIL TERRORISM.

9       13. "Terrorist organization" means any organization that is  
10 designated by the United States department of state as a foreign terrorist  
11 organization under section 219 of the immigration and nationality act  
12 (8 United States Code section 1189).

13       14. "Toxin" means the toxic material of plants, animals,  
14 microorganisms, viruses, fungi or infectious substances or a recombinant  
15 molecule, whatever its origin or method of reproduction, including:

16       (a) Any poisonous substance or biological product that may be  
17 engineered through biotechnology and that is produced by a living  
18 organism.

19       (b) Any poisonous isomer or biological product, homolog or  
20 derivative of such a substance.

21       15. "Vector" means a living organism or molecule, including a  
22 recombinant molecule or biological product that may be engineered through  
23 biotechnology, that is capable of carrying a biological agent or toxin to  
24 a host.

25       16. "Weapon of mass destruction" means:

26       (a) Any device or object that is designed or that the person  
27 intends to use to cause multiple deaths or serious physical injuries  
28 through the use of an explosive agent or the release, dissemination or  
29 impact of a toxin, biological agent or poisonous chemical, or its  
30 precursor, or any vector.

31       (b) Except as authorized and used in accordance with a license,  
32 registration or exemption by the department of health services pursuant to  
33 section 30-672, any device or object that is designed or that the person  
34 intends to use to release radiation or radioactivity at a level that is  
35 dangerous to human life.

36       D. For the purposes of sections 13-2312, 13-2313, 13-2314 and  
37 13-2315, unless the context otherwise requires:

38       1. "Control", in relation to an enterprise, means the possession of  
39 sufficient means to allow substantial direction over the affairs of an  
40 enterprise and, in relation to property, means to acquire or possess.

41       2. "Enterprise" means any corporation, partnership, association,  
42 labor union or other legal entity or any group of persons associated in  
43 fact although not a legal entity.

44       3. "Financial institution" means a banking or securities regulatory  
45 agency of the United States, a business coming within the definition of a  
46 bank, financial agency or financial institution as prescribed by 31 United  
47 States Code section 5312 or 31 Code of Federal Regulations section

1 1010.100 or a business under the jurisdiction of the securities division  
2 of the corporation commission, the state real estate department or the  
3 department of insurance and financial institutions.

4 4. "Racketeering" means any act, including any preparatory or  
5 completed offense, that is chargeable or indictable under the laws of the  
6 state or country in which the act occurred and, if the act occurred in a  
7 state or country other than this state, that would be chargeable or  
8 indictable under the laws of this state if the act had occurred in this  
9 state, and that would be punishable by imprisonment for more than one year  
10 under the laws of this state and, if the act occurred in a state or  
11 country other than this state, under the laws of the state or country in  
12 which the act occurred, regardless of whether the act is charged or  
13 indicted, and the act involves either:

14 (a) Terrorism, animal terrorism or ecological terrorism that  
15 results or is intended to result in a risk of serious physical injury or  
16 death.

17 (b) Any of the following acts if committed for financial gain:

18 (i) Homicide.

19 (ii) Robbery.

20 (iii) Kidnapping.

21 (iv) Forgery.

22 (v) Theft.

23 (vi) Bribery.

24 (vii) Gambling.

25 (viii) Usury.

26 (ix) Extortion.

27 (x) Extortionate extensions of credit.

28 (xi) Prohibited drugs, marijuana or other prohibited chemicals or  
29 substances.

30 (xii) Trafficking in explosives, weapons or stolen property.

31 (xiii) Participating in a criminal syndicate.

32 (xiv) Obstructing or hindering criminal investigations or  
33 prosecutions.

34 (xv) Asserting false claims, including false claims asserted  
35 through fraud or arson.

36 (xvi) Intentional or reckless false statements or publications  
37 concerning land for sale or lease or sale of subdivided lands or sale and  
38 mortgaging of unsubdivided lands.

39 (xvii) Resale of realty with intent to defraud.

40 (xviii) Intentional or reckless fraud in the purchase or sale of  
41 securities.

42 (xix) Intentional or reckless sale of unregistered securities or  
43 real property securities.

44 (xx) A scheme or artifice to defraud.

45 (xxi) Obscenity.

46 (xxii) Sexual exploitation of a minor.

47 (xxiii) Prostitution.

1 (xxiv) Restraint of trade or commerce in violation of section  
2 34-252.  
3 (xxv) Terrorism.  
4 (xxvi) Money laundering.  
5 (xxvii) Obscene or indecent telephone communications to minors for  
6 commercial purposes.  
7 (xxviii) Counterfeiting marks as proscribed in section 44-1453.  
8 (xxix) Animal terrorism or ecological terrorism.  
9 (xxx) Smuggling of human beings.  
10 (xxxi) Child sex trafficking.  
11 (xxxii) Sex trafficking.  
12 (xxxiii) Trafficking of persons for forced labor or services.  
13 (xxxiv) Manufacturing, selling or distributing misbranded drugs in  
14 violation of section 13-3406, subsection A, paragraph 9.  
15 (xxxv) Holding an unauthorized racing meeting as proscribed in  
16 section 5-107.01.  
17 (c) FELONY DISORDERLY CONDUCT, RIOT, CIVIL TERRORISM OR SUBVERSION.  
18 5. "Records" means any book, paper, writing, computer program,  
19 data, image or information that is collected, recorded, preserved or  
20 maintained in any form of storage medium.  
21 6. "Remedy racketeering" means to enter a civil judgment pursuant  
22 to this chapter or chapter 39 of this title against property or a person  
23 who is subject to liability, including liability for injury to the state  
24 that is caused by racketeering or by actions in concert with racketeering.  
25 E. For the purposes of sections 13-2316, 13-2316.01 and 13-2316.02:  
26 1. "Access" means to instruct, communicate with, store data in,  
27 retrieve data from or otherwise make use of any resources of a computer,  
28 computer system or network.  
29 2. "Access device" means any card, token, code, account number,  
30 electronic serial number, mobile or personal identification number,  
31 password, encryption key, biometric identifier or other means of account  
32 access, including a canceled or revoked access device, that can be used  
33 alone or in conjunction with another access device to obtain money, goods,  
34 services, computer or network access or any other thing of value or that  
35 can be used to initiate a transfer of any thing of value.  
36 3. "Computer" means an electronic device that performs logic,  
37 arithmetic or memory functions by the manipulations of electronic or  
38 magnetic impulses and includes all input, output, processing, storage,  
39 software or communication facilities that are connected or related to such  
40 a device in a system or network.  
41 4. "Computer contaminant" means any set of computer instructions  
42 that is designed to modify, damage, destroy, record or transmit  
43 information within a computer, computer system or network without the  
44 intent or permission of the owner of the information, computer system or  
45 network. Computer contaminant includes a group of computer instructions,  
46 such as viruses or worms, that is self-replicating or self-propagating and  
47 that is designed to contaminate other computer programs or computer data,

1 to consume computer resources, to modify, destroy, record or transmit data  
2 or in some other fashion to usurp the normal operation of the computer,  
3 computer system or network.

4       5. "Computer program" means a series of instructions or statements,  
5 in a form acceptable to a computer, that allow the functioning of a  
6 computer system in a manner designed to provide appropriate products from  
7 the computer system.

8       6. "Computer software" means a set of computer programs, procedures  
9 and associated documentation concerned with the operation of a computer  
10 system.

11       7. "Computer system" means a set of related, connected or  
12 unconnected computer equipment, devices and software, including storage,  
13 media and peripheral devices.

14       8. "Critical infrastructure resource" means any computer or  
15 communications system or network that is involved in providing services  
16 necessary to ensure or protect the public health, safety or welfare,  
17 including services that are provided by any of the following:

18       (a) Medical personnel and institutions.

19       (b) Emergency services agencies.

20       (c) Public and private utilities, including water, power,  
21 communications and transportation services.

22       (d) Fire departments, districts or volunteer organizations.

23       (e) Law enforcement agencies.

24       (f) Financial institutions.

25       (g) Public educational institutions.

26       (h) Government agencies.

27       9. "False or fraudulent pretense" means the unauthorized use of an  
28 access device or the use of an access device to exceed authorized access.

29       10. "Financial instrument" means any check, draft, money order,  
30 certificate of deposit, letter of credit, bill of exchange, credit card or  
31 marketable security or any other written instrument as defined in section  
32 13-2001 that is transferable for value.

33       11. "Network" includes a complex of interconnected computer or  
34 communication systems of any type.

35       12. "Property" means financial instruments, information, including  
36 electronically produced data, computer software and programs in either  
37 machine or human readable form, and anything of value, tangible or  
38 intangible.

39       13. "Proprietary or confidential computer security information"  
40 means information about a particular computer, computer system or network  
41 that relates to its access devices, security practices, methods and  
42 systems, architecture, communications facilities, encryption methods and  
43 system vulnerabilities and that is not made available to the public by its  
44 owner or operator.

45       14. "Services" includes computer time, data processing, storage  
46 functions and all types of communication functions.



1       Sec. 2. Title 13, chapter 23, Arizona Revised Statutes, is amended  
2 by adding sections 13-2308.04 and 13-2308.05, to read:

3       13-2308.04. Civil terrorism; classification

4       A. A PERSON COMMITS CIVIL TERRORISM IF THE PERSON COMMITS  
5 VANDALISM, DESTRUCTION OF PROPERTY, DISORDERLY CONDUCT, DEPRIVATION OF  
6 CIVIL RIGHTS OR ANY OTHER UNLAWFUL ACT WITH THE INTENT TO COERCE OR  
7 INTIMIDATE A CIVILIAN POPULATION. [FOR THE PURPOSES OF THIS SUBSECTION,  
8 "INTENT TO COERCE OR INTIMIDATE A CIVILIAN POPULATION" MEANS THE PERSON  
9 ACTED WITH THE CONSCIOUS OBJECTIVE TO COMPEL A BROAD CLASS OF PERSONS TO  
10 ACT OR REFRAIN FROM ACTING THROUGH THE USE OR THREAT OF UNLAWFUL ACTIVITY  
11 OR PHYSICAL DAMAGE TO PROPERTY.

12       B. A VIOLATION OF SUBSECTION A OF THIS SECTION MAY BE ESTABLISHED  
13 BY EVIDENCE THAT INCLUDES ANY OF THE FOLLOWING:

14       1. PLANNING, PREPARING OR COORDINATING ACTS THAT ARE DESIGNED TO  
15 CAUSE WIDESPREAD FEAR, PHYSICAL INJURY OR SUBSTANTIAL PROPERTY DAMAGE.

16       2. USING WEAPONS, DANGEROUS INSTRUMENTS, EXPLOSIVES, INCENDIARY  
17 DEVICES OR MATERIALS THAT ARE INTENDED TO CAUSE SIGNIFICANT DESTRUCTION.

18       3. TARGETING CRITICAL INFRASTRUCTURE, PUBLIC UTILITIES,  
19 TRANSPORTATION SYSTEMS, GOVERNMENT BUILDINGS OR PUBLIC ESTABLISHMENTS.

20       4. MAKING STATEMENTS, COMMUNICATIONS, MANIFESTOS OR DIRECTIVES  
21 BEFORE, DURING OR AFTER THE ACT THAT ADVOCATE OR DIRECT THE USE OF  
22 VIOLENCE OR UNLAWFUL FORCE TO INFLUENCE THE BEHAVIOR OF A CIVILIAN  
23 POPULATION.

24       5. PARTICIPATING IN AN ORGANIZED EFFORT INVOLVING TWO OR MORE  
25 PERSONS IN WHICH THE UNLAWFUL ACTS WERE COORDINATED TO ACHIEVE WIDESPREAD  
26 DISRUPTION THROUGH VIOLENT OR DESTRUCTIVE MEANS.

27       C. EVIDENCE THAT A PERSON EXPRESSED POLITICAL, SOCIAL OR IDEOLOGICAL  
28 VIEWS, WITHOUT ACCOMPANYING EVIDENCE OF INTENT TO USE OR THREATEN UNLAWFUL  
29 ACTIVITY OR SUBSTANTIAL PROPERTY DESTRUCTION, IS NOT SUFFICIENT TO  
30 ESTABLISH A VIOLATION OF SUBSECTION A OF THIS SECTION.]

31       ~~[B.]~~ [D.] CIVIL TERRORISM IS A CLASS 5 FELONY.

32       13-2308.05. Subversion; classification; definition

33       A. A PERSON COMMITS SUBVERSION IF THE PERSON COMMITS AN UNLAWFUL  
34 ACT WITH THE INTENT TO DO ANY OF THE FOLLOWING:

35       1. ADVANCE THE INTERESTS OF A TERRORIST ORGANIZATION.

36       2. ATTEMPT TO ACT AS A FOREIGN GOVERNMENT AGENT AS DEFINED IN  
37 SECTION 13-4006.

38       3. SUBVERT THE GOVERNMENT OF THIS STATE OR THE UNITED STATES.

39       B. FOR THE PURPOSES OF SUBSECTION A OF THIS SECTION, "INTENT TO  
40 SUBVERT THE GOVERNMENT" MEANS THE CONSCIOUS OBJECTIVE TO IMPAIR, OVERTHROW  
41 OR PREVENT THE FUNCTIONING OF GOVERNMENT THROUGH UNLAWFUL VIOLENCE, FORCE  
42 OR THE DESTRUCTION OF PROPERTY.

43       C. A VIOLATION OF SUBSECTION A OF THIS SECTION MAY BE ESTABLISHED  
44 BY EVIDENCE THAT INCLUDES ANY OF THE FOLLOWING:

45       1. PLANNING OR ENGAGING IN ACTS THAT ARE INTENDED TO CAUSE SERIOUS  
46 PHYSICAL INJURY, DEATH OR SUBSTANTIAL DESTRUCTION OF GOVERNMENT PROPERTY.

1       2. ATTEMPTING TO SEIZE, DAMAGE OR DISABLE CRITICAL GOVERNMENT  
2 FACILITIES, PUBLIC INFRASTRUCTURE OR COMMUNICATION SYSTEMS.

3       3. USING OR PLANNING TO USE WEAPONS, EXPLOSIVES OR OTHER  
4 DESTRUCTIVE DEVICES.

5       4. COORDINATING ACTION WITH OTHERS IN WHICH THE UNLAWFUL OBJECTIVE  
6 INVOLVES VIOLENT INTERFERENCE WITH GOVERNMENTAL OPERATIONS.

7       D. ADVOCACY, PROTEST, DISSENT OR POLITICAL OPPOSITION, WITHOUT  
8 EVIDENCE OF INTENT TO USE OR THREATEN UNLAWFUL VIOLENCE OR FORCE, DOES NOT  
9 CONSTITUTE SUBVERSION UNDER THIS SECTION.]

10       ~~[B.]~~ [E.] SUBVERSION IS A CLASS 5 FELONY.

11       Sec. 3. Section 13-2904, Arizona Revised Statutes, is amended to  
12 read:

13       13-2904. Disorderly conduct; classification

14       A. A person commits disorderly conduct if, with intent to disturb  
15 the peace or quiet of a neighborhood, family or person, or with knowledge  
16 of doing so, such person:

17       1. Engages in fighting, violent or seriously disruptive behavior;  
18 or

19       2. Makes unreasonable noise; or

20       3. Uses abusive or offensive language or gestures to any person  
21 present in a manner likely to provoke immediate physical retaliation by  
22 such person; or

23       4. Makes any protracted commotion, utterance or display with the  
24 intent to prevent the transaction of the business of a lawful meeting,  
25 gathering or procession; or

26       5. Refuses to obey a lawful order to disperse issued to maintain  
27 public safety in dangerous proximity to a fire, a hazard or any other  
28 emergency; or

29       6. Recklessly handles, displays or discharges a deadly weapon or  
30 dangerous instrument.

31       B. Disorderly conduct under:

32       1. Subsection A, paragraph 6 OF THIS SECTION is a class 6 felony  
33 UNLESS THE DISORDERLY CONDUCT IS COMMITTED BY A GROUP COMPRISED OF AT  
34 LEAST THREE PERSONS, IN WHICH CASE THE OFFENSE IS A CLASS 5 FELONY.

35 ~~Disorderly conduct under~~

36       2. Subsection A, paragraph 1, 2, 3, 4 or 5 OF THIS SECTION is a  
37 class 1 misdemeanor UNLESS THE DISORDERLY CONDUCT IS COMMITTED BY A GROUP  
38 COMPRISED OF AT LEAST THREE PERSONS, IN WHICH CASE THE OFFENSE IS A CLASS  
39 6 FELONY.

40       Sec. 4. Section 13-2906, Arizona Revised Statutes, is amended to  
41 read:

42       13-2906. Obstructing a highway or other public thoroughfare;  
43 classification; definition

44       A. A person commits obstructing a highway or other public  
45 thoroughfare if the person, alone or with other persons, does any of the  
46 following:

1        1. Having no legal privilege to do so, recklessly interferes with  
2 the passage of any highway or public thoroughfare by creating an  
3 unreasonable inconvenience or hazard.

4        2. Intentionally activates a pedestrian signal on a highway or  
5 public thoroughfare if the person's reason for activating the signal is  
6 not to cross the highway or public thoroughfare but to do both of the  
7 following:

8            (a) Stop the passage of traffic on the highway or public  
9 thoroughfare.

10           (b) Solicit a driver for a donation or business.

11        3. After receiving a verbal warning to desist, intentionally  
12 interferes with passage on a highway or other public thoroughfare or  
13 entrance into a public forum that results in preventing other persons from  
14 gaining access to a governmental meeting, a governmental hearing or a  
15 political campaign event.

16        B. Obstructing a highway or other public thoroughfare under:

17           1. Subsection A, paragraph 3 of this section is a class 1  
18 misdemeanor.

19           2. Subsection A, paragraph 1 of this section is a class 2  
20 misdemeanor, except that a second or subsequent violation within a period  
21 of twenty-four months is a class 1 misdemeanor.

22           3. Subsection A, paragraph 2 of this section is a class 3  
23 misdemeanor.

24        C. NOTWITHSTANDING SUBSECTION B OF THIS SECTION, OBSTRUCTING A  
25 HIGHWAY OR OTHER PUBLIC THOROUGHFARE UNDER SUBSECTION A, PARAGRAPH 1, 2 OR  
26 3 OF THIS SECTION IS A CLASS 6 FELONY IF THE OBSTRUCTION IS COMMITTED BY A  
27 GROUP COMPRISED OF AT LEAST THREE PERSONS.

28        ~~C.~~ D. For the purposes of this section, "public forum" has the  
29 same meaning prescribed in section 15-1861.

30        Sec. 5. Effective date

31        This act is effective from and after December 31, 2026.

32 Enroll and engross to conform

33 Amend title to conform

MICHAEL WAY

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